

SUBSTITUTE FOR
HOUSE BILL NO. 5681

A bill to amend 2004 PA 47, entitled
"Medical records access act,"
by amending section 9 (MCL 333.26269).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 9. (1) Except as otherwise provided in this section, if a
2 patient or ~~his or her~~**the** authorized representative **of the patient**
3 makes a request for a copy of all or part of ~~his or her~~**the**
4 **patient's** medical record under section 5, the health care provider,
5 health facility, or medical records company to which the request is
6 directed may charge the patient or ~~his or her~~**the** authorized
7 representative **of the patient** a fee that is not more than the
8 following amounts:

9 (a) An initial fee of ~~\$20.00~~**\$32.08** per request for a copy of



1 the record.

2 (b) Paper ~~copies~~ **and electronic copies** as follows:

3 (i) ~~One dollar~~ **A fee of \$1.60** per page for the first 20 pages.

4 (ii) ~~Fifty cents~~ **A fee of 80 cents** per page for pages 21
5 through 50.

6 (iii) ~~Twenty cents~~ **A fee of 32 cents per page** for pages 51 and
7 over.

8 ~~(c) If the medical record is in some form or medium other than~~
9 ~~paper, the actual cost of preparing a duplicate.~~

10 **(c)** ~~(d)~~ Any postage or shipping costs incurred by the health
11 care provider, health facility, or medical records company in
12 providing the copies.

13 **(d)** ~~(e)~~ Any actual costs incurred by the health care provider,
14 health facility, or medical records company in retrieving medical
15 records that are 7 years old or older and not maintained or
16 accessible on-site.

17 (2) A health care provider, health facility, or medical
18 records company may refuse to retrieve or copy all or part of a
19 medical record for a patient or ~~his or her~~ **the** authorized
20 representative **of the patient** until the applicable fee is paid.

21 (3) A health care provider, health facility, or medical
22 records company shall not charge a fee for retrieving, copying, or
23 mailing all or part of a medical record other than a fee allowed
24 under subsection (1). Except as otherwise provided in subsection
25 (4), a health care provider, health facility, or medical records
26 company shall waive all fees for a medically indigent individual.
27 The health care provider, health facility, or medical records
28 company may require the patient or ~~his or her~~ **the** authorized
29 representative **of the patient** to provide proof that the patient is



1 a recipient of assistance as described in this subsection.

2 (4) A medically indigent individual ~~that~~**who** receives copies
3 of medical records at no charge under subsection (3) is limited to
4 1 set of copies per health care provider, health facility, or
5 medical records company. Any additional requests for the same
6 records from the same health care provider, health facility, or
7 medical records company ~~shall be~~**are** subject to the fee provisions
8 under subsection (1).

9 (5) Notwithstanding subsection (1), a health care provider,
10 health facility, or medical records company shall not charge a
11 patient ~~an~~**any of the following:**

12 (a) **An** initial fee for ~~his or her~~**the patient's** medical
13 record.

14 (b) **The fee described in subdivision (1)(b), if the patient is**
15 **receiving an electronic copy of the patient's medical record.**

16 (6) Beginning ~~2 years after the effective date of this act,~~
17 **January 1, 2028, and by January 1 of each year thereafter,** the
18 department of ~~community health~~**and human services** shall adjust ~~on~~
19 ~~an annual basis~~ the fees prescribed by subsection (1) by an amount
20 determined by the state treasurer to reflect the cumulative annual
21 percentage change in the Detroit ~~consumer price index.~~**Consumer**
22 **Price Index.**